

SENATE JOINT RESOLUTION 684

By Oliver

A RESOLUTION to express opposition to The Boring Company's proposed tunnels within Metropolitan Nashville and Davidson County; condemn the company's lack of transparency, inadequate community and Davidson County delegation engagement, and troubling labor and safety practices; and affirm that public land and public infrastructure decisions must prioritize the welfare, safety, and expressed needs of Nashville residents.

WHEREAS, in July 2025, The Boring Company announced its intention to construct the "Music City Loop," a tunnel between downtown Nashville and Nashville International Airport, despite having conducted little meaningful consultation with Nashville residents, community leaders, or the Davidson County delegation of State legislators; and

WHEREAS, Nashville residents have repeatedly expressed frustration that they were never meaningfully consulted about a major infrastructure proposal involving public land on real property owned and controlled by the State that potentially affects environmental, geological, and public safety conditions and property rights and shapes long-term transportation planning in the region; and

WHEREAS, with the cost to taxpayers unknown, the people of Nashville and the State of Tennessee expect and deserve a transparent decision making process for large-scale infrastructure projects, particularly those involving public resources and long-term community impact; and

WHEREAS, the Public-Private Transportation Act of 2016, compiled in Title 54, Chapter 6, Part 1, governs the development of state-owned property by private entities for use as a "transportation facility"; and

WHEREAS, "transportation facility" is defined in the act strictly as a "mass transit system intended for shared passenger transport services to the general public." The Music City Loop

tunnel is not intended for mass transit or vehicular use by the general public but, rather, is intended for the exclusive use of out-of-county air travelers to and from the airport; and

WHEREAS, Nashville residents are asking for real, reliable, equitable mass-transit solutions that improve daily mobility for workers, students, seniors, families, and people with disabilities, not projects that prioritize tourism corridors or speculative development for exclusive profit motives; and

WHEREAS, one such mass transit solution to improve daily quality of life is the Choose How You Move Transportation Improvement Plan that was overwhelmingly approved by ballot referendum on November 5, 2024, with sixty-six percent of the voters of Nashville-Davidson County voting to approve the plan; and

WHEREAS, the Choose How You Move Transportation Improvement Plan created a dedicated funding source for transportation and mobility projects that include sidewalks, traffic signal upgrades, bus transit service, and safety; and

WHEREAS, the Music City Loop tunnel does not encompass these transportation and mobility projects, nor alleviate the real traffic congestion that Nashville residents face, and the project diminishes the opportunity for Metro Nashville to envision and implement additional mass transit options, such as light passenger rail, in future years; and

WHEREAS, any major transportation project involving public land or public impact must center the needs of Nashville residents and must undergo rigorous community engagement, labor review, environmental study, and public accountability; and

WHEREAS, in July 2025, several members of the Davidson County delegation formally requested a meeting to allow The Boring Company to present comprehensive information regarding the Music City Loop's scope, timeline, safety measures, environmental concerns, and potential fiscal impact, so that elected members could better respond to constituents' questions and concerns; and

WHEREAS, The Boring Company declined certain requests from members of the Davidson County delegation, despite the clear need for transparency and public accountability for a project of this scale; and

WHEREAS, The Boring Company has made public statements claiming it values transparency, wants feedback, and seeks to actively collaborate with the community, yet in practice has chosen to engage selectively with only some Davidson County delegation members while declining invitations to meet with the elected officials that actually represent the impacted region where the proposed tunnel will run, resulting in an inconsistent flow of information that is not the fault of any individual Davidson County delegation member but rather a consequence of the company's own engagement choices; and

WHEREAS, on July 31, 2025, after promising "no costs to taxpayers" at a private, undisclosed press conference, State officials held a special State Building Commission meeting, where the agenda said the Department of General Services was seeking approval of the deal and to waive normal taxpayer-protection rules for the disposal of nearly an acre of state property at 637 Rosa Parks Boulevard in Nashville, to give billionaire Elon Musk's The Boring Company a "no cost" lease for a place to begin digging tunnels underneath the City of Nashville; and

WHEREAS, during the meeting prior to the vote, the Commissioner of General Services stated that the "license allows the Tenant to do very limited activities like installing a fence and geotechnical exploration," but the fence surrounding the proposed state property was already erected on July 30, 2025, the day prior to the State Building Commission meeting where the approval of fence installation was to take place; and

WHEREAS, the State Building Commission's lease policy states, "In the case of disposal leases that benefit a private person, persons or entity, the State shall publicly advertise the availability of the property and receive proposals by interested parties. Where it is not feasible to require public advertisement, the interest may be conveyed to a requesting party for

consideration at no less than the fair market value as determined by appraisal, unless otherwise approved by the Commission"; and

WHEREAS, according to Tennessee Code Annotated, Section 12-2-112(b), the Commissioner of General Services is required to notify the members of the General Assembly who represent the district where property is to be "sold or conveyed" at least twenty days prior to such sale or conveyance; and

WHEREAS, at the State Building Commission meeting, during the public comment period, every speaker was a Davidson County resident and spoke in opposition to the Music City Loop tunnel, including four elected officials of the Davidson County delegation; and

WHEREAS, on November 24, 2025, CEO Steve Davis of The Boring Company participated not in a formal Davidson County delegation briefing or an in-person community town hall, but instead in a public social media forum on X (formerly known as Twitter), stating: "We wouldn't go into a city and fight to build something that is so extensive and labor intensive and an incredibly difficult project. We are still going because everyone has been unbelievably positive," despite clear evidence of significant community concern and many unanswered questions; and

WHEREAS, public land is a public trust and must only be used in ways that demonstrably and transparently serve the public good—not for speculative private ventures lacking meaningful community engagement; and

WHEREAS, the intent is for the Music City Loop tunnel to be built below the State's right-of-way under state roads, but it seems possible that there could be impacts outside of the state-owned property, about which potential impacts questions posed by the Davidson County delegation and Metro Nashville local officials remain unanswered; and

WHEREAS, in November 2025, subcontractor Shane Trucking & Excavating walked off the project citing late payments—some reportedly more than 120 days overdue—as well as

safety issues, including the absence of a permanent safety director, inadequate protective equipment, and other contract breaches; and

WHEREAS, these labor concerns mirror a broader pattern: reports have documented repeated safety violations, fines, and worker-protection failures at The Boring Company's Las Vegas tunneling operations, including ventilation hazards, equipment issues, and inadequate emergency protocols, resulting in federal penalties; and

WHEREAS, environmental permits that may be needed for a tunneling project include: physical alterations to properties of waters of the State require an Aquatic Resource Alteration Permit (ARAP) or a § 401 Water Quality Certification (§ 401 certification); projects involving dredge, fill, or horizontal boring on, above, or beneath "Waters of the U.S." (Section 404 of the Clean Water Act (33 U.S.C. 1251 et seq.) or Section 10 of the Rivers and Harbors Act (33 U.S.C. 403) generally require a Nationwide or Individual Permit from the U.S. Army Corps of Engineers; and for land disturbances greater than one acre associated with construction, a National Pollutant Discharge Elimination System (NPDES) Construction General Permit (CGP) is required; and

WHEREAS, Nashville's limestone and karst geology, sinkhole risks, and history of major flooding require extensive and transparent environmental, geological, and engineering review, which has not been made available to the public or the members of the Davidson County delegation; and

WHEREAS, these repeating safety and labor deficiencies raise profound concerns about the company's ability to conduct tunneling operations safely beneath Nashville's homes, businesses, and public rights-of-way; and

WHEREAS, The Boring Company has a well-documented history of stalled, abandoned, or canceled tunneling projects in Baltimore, Los Angeles, Chicago, Fort Lauderdale, Las Vegas

(expansion), Austin, and Abu Dhabi, often after significant public announcements, with little transparency about the causes or consequences of withdrawal; and

WHEREAS, this pattern raises concerns that Nashville could be left with unrepaired excavation sites, stranded infrastructure, or long-term liabilities should the project be delayed, abandoned, or significantly altered; now, therefore,

BE IT RESOLVED BY THE SENATE OF THE ONE HUNDRED FOURTEENTH GENERAL ASSEMBLY OF THE STATE OF TENNESSEE, THE HOUSE OF REPRESENTATIVES CONCURRING, that we hereby oppose The Boring Company's proposed Music City Loop project due to unresolved concerns regarding safety, labor practices, transparency, environmental impact, geological risk, and lack of meaningful engagement with Nashville residents and their duly elected representatives.

BE IT FURTHER RESOLVED, that, in order to make an effort toward creating public trust, The Boring Company participate in a formal, in-person, public briefing with residents and businesses along the affected jurisdictions; release all environmental, geological, safety, and fiscal studies for independent review; demonstrate compliance with fair labor and contractor standards, including timely payment and robust safety protections; engage in consistent, transparent communication with all Davidson County delegation members, not selective or informal outreach; and provide clear contingency and restoration plans in the event of project delay, alteration, or abandonment.

BE IT FURTHER RESOLVED, that we affirm that public land must only be used for public benefit, and that any proposal involving public land must undergo rigorous evaluation, procurement, and community review and remain committed to advancing real, equitable, community-centered transit solutions that meet the needs of Nashville residents and uphold the highest standards of safety, labor protections, environmental stewardship, and public accountability.

BE IT FURTHER RESOLVED, that a certified copy of this resolution be transmitted to the Governor, the State Building Commission, and The Boring Company.